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This Agreement grants You ("**You"** or "**Your**") a limited license to use the TrackIR SDK, subject to the terms and conditions provided in this document. A summary of key points is listed below:

- You are permitted to create applications or products that integrate the TrackIR SDK, with the limitations outlined below. Those applications or products are subject to the terms in this document.
- You are prohibited from using this TrackIR SDK to create or enable the use of competitive products.
- If you use this TrackIR SDK to enable TrackIR compatibility with your game, you grant NaturalPoint the right to state that your games may be used with TrackIR, but only after the public release of your game or application.
- NaturalPoint will not support any product you create with this TrackIR SDK. You may request help integrating, but we are not obligated to provide support.
- You are prohibited from using this TrackIR SDK in any high-risk applications, as defined below.

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This EULA does not grant you any right or interest in or to NaturalPoint's TrackIR software. NaturalPoint's TrackIR Software is licensed under separate license terms and conditions accessible here: https://www.trackir.com/eula

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IF YOU DOWNLOAD, INSTALL, ACCESS OR USE THE TRACKIR SDK, YOU ACCEPT AND AGREE TO BE BOUND BY THIS EULA. IF YOU ARE AN INDIVIDUAL ACTING ON BEHALF OF AN ENTITY, YOU REPRESENT AND WARRANT THAT YOU HAVE THE AUTHORITY TO ENTER INTO THIS EULA ON BEHALF OF THAT ENTITY. IF YOU DO NOT HAVE SUCH AUTHORITY, YOU ARE SOLELY RESPONSIBLE FOR YOUR USE OF THE TRACKIR SDK. IF YOU DO NOT ACCEPT THE TERMS OF THIS EULA, THEN YOU ARE NOT PERMITTED TO INSTALL, ACCESS, DOWNLOAD OR OTHERWISE USE THE TRACKIR SDK.

1. **TrackIR SDK.** This End User License Agreement ("**ELUA**") governs Your use of the TrackIR SDK, formerly known as the TrackIR Enhanced SDK or TrackIR Enhanced Interface Software ("**TrackIR SDK**"), is defined to mean NaturalPoint's proprietary: (a) user documentation provided in printed and/or electronic media; (b) application programs, utilities, and tools a (c) sample or demonstration software code; and/or (d) any updates or upgrades thereto (to the extent updates or upgrades are made available by NaturalPoint).

2. **License Grant.** Subject to Your payment of applicable fees, if any, and Your strict compliance with the terms and conditions of this EULA, NaturalPoint Inc. ("**NaturalPoint**") hereby grants to You, during the term of this EULA, a limited, revocable, non-exclusive, non-transferrable (except as permitted in this Section 2), non-sublicensable (except as permitted in this Section 2) license to:

   a. use the TrackIR SDK solely to develop, test and create Your own products as authorized in Section 4(b) below ("**Product(s)**"**)**; and
   b. copy, distribute, and sublicense the distributable elements of the TrackIR SDK solely as part of the Products for installation on Your end-customers' devices and subject to the terms of a legally binding license agreement between

You and the end-customer that complies with Section 4(c) below.

The foregoing license rights are non-transferable and non-sublicensable, provided that, You may sublicense the license rights granted in this Section 2 above solely to Your third party distributors so as to permit such third party distributors to distribute and/or make available the Products to end-customers.

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4. **Restrictions and Obligations.**

   a. Restrictions. Except as expressly permitted herein, You will not, and will not permit, encourage, or enable any third party to: (i) sell, sublicense, rent, loan or lease any portion of the TrackIR SDK to any third party; (ii) modify, disassemble, decompile or reverse engineer any part of the TrackIR SDK (except that You may modify any sample or demonstration source code included in the TrackIR SDK); (iii) copy (except for reasonable backup purposes and with all labelling and proprietary rights notices intact) or otherwise reproduce the TrackIR SDK, in whole or in part, or modify, adapt, alter, translate or incorporate into or with other software or technology or create a derivative work of any part of, the TrackIR SDK; (iv) remove, modify, or otherwise tamper with proprietary rights notices or legends on the TrackIR SDK; (v) use the TrackIR SDK in any manner to provide service bureau, time sharing or other computer services to third parties; (vi) distribute the SDK (other than the distributable elements of the TrackIR SDK used or incorporated in the Products in accordance with this EULA); (vii) use the TrackIR SDK in or as part of the development of any product or service that is competitive with or similar to NaturalPoint hardware or software; or (viii) enable the TrackIR SDK to interface with any product or service that is competitive with or similar to NaturalPoint hardware or software; or (ix) disclose the results of any performance benchmark or similar testing of the TrackIR SDK to any third party without NaturalPoint's prior written consent.

   b. Products. You agree as follows with respect to the Products:

      (i) The Products shall not substantially replicate the functionality of the products or services offered by NaturalPoint.

      (ii) You acknowledge and agree that You are solely responsible for, and that NaturalPoint has no responsibility or liability of any kind in connection with, the content, development, operation, support or maintenance of any Products. Without limiting the foregoing, You will be solely responsible for: (1) the technical installation and operation of the Products; (2) creating and displaying information and content on, through or within the Products; (3) ensuring that the Products do not violate or infringe the intellectual property rights of any third party; (4) ensuring that the Products are not offensive, profane, obscene, libelous or otherwise illegal or in violation of applicable laws; (5) ensuring that the Products do not contain or introduce any virus, Trojan horse, worm, software lock, drop dead device or any other limiting routine or harmful code into any NaturalPoint or end-customer IT systems, networks, hardware or software; and (6) ensuring that the Products are not designed to or utilized for the purpose of spamming end users or any third parties.

(iii) You acknowledge and agree that You are solely responsible for providing all support and technical assistance to end-customers of the Products. NaturalPoint has no obligation to provide such support or technical assistance to end-customers or their users, and You agree not to represent to end-customers or their users that NaturalPoint is available to provide such support or technical assistance.

c. End-Customer Agreement. You agree to cause each end-customer to whom You provide or distribute a Product to agree to a binding end user license agreement including terms and conditions that are at least as protective of the TrackIR SDK and NaturalPoint's intellectual property rights associated therewith or embodied therein as the terms and conditions of this EULA. Such agreement shall further disclaim any and all representations and warranties on the part of NaturalPoint, and exclude and disclaim all liability of any kind on the part of NaturalPoint.

d. Testing. You will be solely responsible for the testing and evaluation of the TrackIR SDK for Your purposes.

f. Compliance with Laws; Privacy. You agree that in using the TrackIR SDK, You will comply with all applicable laws and protect the privacy and legal rights of end-customer users. Without limiting the foregoing, You agree to prominently display a privacy notice that describes to end-customer users the information that is collected by You and Your Product and how such information is used and shared. You will maintain and process all end-customer user information in accordance with Your privacy notice and all applicable laws in any countries in which the Products are used.

5. **Trademarks.** To the extent the TrackIR SDK displays NaturalPoint's trademark, trade names, logos or other branding (the "**NaturalPoint Marks**"), NaturalPoint hereby grants to You a limited, non-exclusive, non-transferrable, non-sublicensable, revocable, royalty-free license, during the term of this EULA only and subject to the terms and conditions set forth herein, to display the NaturalPoint Marks as part of the normal operation of the TrackIR SDK. You acknowledge NaturalPoint's ownership of and exclusive rights in and to the NaturalPoint Marks and all goodwill associated therewith, and acknowledge and agree that any and all use of the NaturalPoint Marks shall inure to the sole and exclusive benefit of NaturalPoint. You agree not to take any action or engage in any conduct that is inconsistent with or contrary to NaturalPoint's sole and exclusive rights in and ownership of the NaturalPoint Marks. NaturalPoint does not grant You any other rights to use the NaturalPoint Marks, whether by implication, estoppel or otherwise.

6. **Support Services**. NaturalPoint is not obligated under this EULA to provide any technical support for the TrackIR SDK. If any such technical support is provided, such support is provided is "as is", with all faults", and without representations or warranties of any kind.

7. **Updates.** NaturalPoint, at its discretion, may make available to You updates or upgrades to the TrackIR SDK. In the event that NaturalPoint provides any such updates or upgrades, the terms and conditions of this EULA will govern any such updates or upgrades, except that if such upgrades or updates are accompanied by a separate set of terms, those terms will govern and control the use of the upgrades or updates to the extent of any conflict with or terms that are in addition to this EULA.

8. **Disclaimer.** THE TRACKIR SDK IS PROVIDED "AS IS" AND WITH ALL FAULTS. NATURALPOINT AND ITS AFFILIATES HEREBY EXPRESSLY DISCLAIM ANY AND ALL REPRESENTATIONS AND WARRANTIES OF ANY KIND, WHETHER EXPRESS, IMPLIED OR STATUTORY, INCLUDING WITHOUT LIMITATION, THE IMPLIED WARRANTIES OF MERCHANTABILITY AND FITNESS FOR A PARTICULAR PURPOSE. NATURALPOINT DOES NOT REPRESENT OR WARRANT THAT THE TRACKIR SDK WILL MEET YOUR REQUIREMENTS, THAT THE TRACKIR SDK IS COMPATIBLE WITH ANY PARTICULAR HARDWARE OR SOFTWARE PLATFORM(S), OR THAT THE USE OF THE TRACKIR SDK WILL BE UNINTERRUPTED, ERROR- FREE, OR FREE FROM ANY INFRINGEMENT OF ANY INTELLECTUAL PROPERTY RIGHT(S), INCLUDING BUT NOT LIMITED TO, PATENTS, UTILITY MODELS, TRADEMARKS OR COPYRIGHTS, OR THAT DEFECTS IN THE TRACKIR SDK WILL BE CORRECTED. FURTHERMORE, NATURALPOINT AND ITS AFFILIATES DO NOT MAKE ANY REPRESENTATION OR WARRANTY REGARDING THE USE BY YOU OF THE TRACKIR SDK

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9. **High Risk Applications.** THE TRACKIR SDK IS NOT DESIGNED, MANUFACTURED, OR INTENDED FOR USE IN ENVIRONMENTS REQUIRING FAULT TOLERANCE OR FAIL-SAFE PERFORMANCE, SUCH AS IN THE OPERATION OF NUCLEAR FACILITIES, AIRCRAFT NAVIGATION, MEDICAL OR COMMUNICATION SYSTEMS, AIR TRAFFIC CONTROL, DIRECT LIFE SUPPORT MACHINES, OR WEAPON SYSTEMS, IN WHICH THE FAILURE OF THE SOFTWARE COULD LEAD DIRECTLY TO DEATH, PERSONAL INJURY, OR SEVERE PHYSICAL OR ENVIRONMENTAL DAMAGE ("HIGH RISK APPLICATIONS"). NAUTRALPOINT AND ITS LICENSORS SPECIFICALLY DISCLAIM ANY EXPRESS OR IMPLIED WARRANTY OF FITNESS FOR HIGH RISK APPLICATIONS.

10. **Limitation of Liability.** IN NO EVENT WILL NATURALPOINT AND ITS AFFILIATES BE LIABLE TO YOU OR TO ANY THIRD PARTY FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL OR PUNITIVE DAMAGES, OR DAMAGES FOR LOSS OF PROFITS, REVENUE, BUSINESS, SAVINGS, DATA, USE, OR COST OF SUBSTITUTE GOODS OR SERVICES, REGARDLESS OF THE CAUSE OF ACTION UNDER WHICH SUCH DAMAGES ARE SOUGHT (INCLUDING AN ACTION IN CONTRACT OR TORT), AND REGARDLESS OF WHETHER NATURALPOINT HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES OR IF SUCH DAMAGES WERE FORESEEABLE. YOU ACKNOWLEDGE THAT THE LIMITATIONS OF LIABILITY IN THIS SECTION AND IN THE OTHER PROVISIONS OF THIS AGREEMENT AND THE ALLOCATION OF RISK HEREIN ARE AN ESSENTIAL ELEMENT OF THE BARGAIN BETWEEN THE PARTIES, WITHOUT WHICH NATURALPOINT WOULD NOT HAVE ENTERED INTO THIS AGREEMENT. IN THE EVENT OF ANY CLAIM RELATED IN ANY WAY TO THIS AGREEMENT OR THE TRACKIR SDK, YOU ACKNOWLEDGE AND AGREE THAT NATURALPOINT'S AND ITS AFFILIATES' TOTAL AGGREGATE LIABILITY TO YOU UNDER THIS AGREEMENT SHALL NOT EXCEED THE GREATER OF THE AMOUNT OF ONE-HUNDRED U.S. DOLLARS (U.S. $100 NOTHING IN THIS SECTION EXCLUDES OR LIMITS NATURALPOINT'S LIABILITY FOR MATTERS FOR WHICH LIABILITY CANNOT BE EXCLUDED OR LIMITED UNDER APPLICABLE LAW.

11. **Indemnification.** You agree to defend, indemnify and hold harmless NaturalPoint and its affiliates, and each of their respective officers, directors, agents, and employees, for, from, and against any and all claims, demands, loss, damage, liability, cost, or expense (including, but not limited to, attorneys' fees at trial, on appeal, and on any petition for review), arising out of or related to: (a) Your breach or failure to comply with any Open Source Software license or other third party software license; (b) Your breach of this EULA; (c) the conduct of Your business; (d) Your use of the TrackIR SDK or the NaturalPoint Marks; (e) Your Products; or (f) Your infringement, misappropriation, or violation of the intellectual property rights or other proprietary rights of any third party.

12. **Termination.**

    a. This EULA commences on the date You click to accept the terms and conditions of this EULA when provided the opportunity to do so, and will continue in effect until terminated. You may terminate this EULA by notifying NaturalPoint in writing that You have ceased all use of the TrackIR SDK. Additionally, Your rights and licenses under this EULA will automatically terminate and cease to be effective, without any notice or action by NaturalPoint, in the event that You breach or otherwise fail to comply with any term of this EULA.

    b. Upon the termination of this EULA, You will cease all use of the TrackIR SDK and permanently delete and make unrecoverable the TrackIR SDK and all copies thereof from Your computer and any other device on which it was

installed. Upon any termination of this EULA, Sections 1, 3, 8, 9, 10, 11(b), and 12-17 will survive.

13. Governing Law and Venue; Governing Language.

a. Governing Law. This EULA is governed by the laws of the State of Oregon and the United States of America, without regard to conflict of law principles. The United Nations Convention for the International Sale of Goods shall not apply. Any dispute relating in any way to the TrackIR SDK or this EULA will only be adjudicated in a state or federal court located in Multnomah County, Oregon. Each party consents to exclusive jurisdiction and venue in these courts. Notwithstanding the foregoing, any party may seek injunctive relief in any state, federal, or national court of competent jurisdiction for any actual or alleged infringement of such party's, its affiliates' or any third party's intellectual property or other proprietary rights.

b. ANY AND ALL DISPUTES, CLAIMS, AND CAUSES OF ACTION ARISING OUT OF OR CONNECTED WITH THIS AGREEMENT AND/OR THE TRACKIR SDK SHALL BE RESOLVED INDIVIDUALLY, WITHOUT RESORT TO ANY FORM OF CLASS ACTION. EACH PARTY IRREVOCABLY AND UNCONDITIONALLY WAIVES ANY RIGHT IT MAY HAVE TO A TRIAL BY JURY IN RESPECT OF ANY LEGAL ACTION ARISING OUT OF OR RELATING TO THIS AGREEMENT OR THE TRANSACTIONS CONTEMPLATED HEREBY.

14. U.S. Government Restricted Rights; Export Restrictions.

a. U.S. Government Restricted Rights. The TrackIR SDK is a "commercial item," as that term is defined at 48 CFR 2.101, consisting of "commercial computer software" and "commercial computer software documentation," as such terms are used in 48 CFR 12.212. Consistent with 48 CFR 12.212 and 48 CFR 227.7202-1 through 227.7202-4, all U.S. Government users acquire the TrackIR SDK with only those rights set forth herein.

b. Export Restrictions. You may not download, export or re-export the TrackIR SDK: (i) into, or to a national or resident of, any country to which the United States has embargoed goods; or (ii) to anyone on the United States Treasury Department's list of Specially Designated Nationals or the U.S. Commerce Department's Table of Deny Orders. Accordingly, You hereby represent and warrant that You are not located in, under the control of, or a national or resident of any such country or on any such list. You acknowledge that it is Your sole responsibility to comply with any and all government export and other applicable laws and that NaturalPoint has no responsibility with respect thereto.

15. Third Party Software.

a. Open Source Software. You shall not take any action that would require, indicate, or imply that the TrackIR SDK is or may be licensed under the terms of any Open Source Software license. By way of illustration and not by way of limitation, You shall not use or incorporate the TrackIR SDK with any Open Source Software licensed under any license terms that: (i) impose or could impose a requirement or condition that the TrackIR SDK, or any software or source code used or integrated therewith: (1) be disclosed or distributed in source code form; (2) be licensed for the purpose of making modifications or derivative works; or (3) be redistributable at no charge; or (ii) otherwise impose or could impose any other material limitation, restriction, or condition on the right or ability of NaturalPoint to use or distribute the TrackIR SDK, or any software or source code used or integrated therewith. You shall promptly inform NaturalPoint in writing of any Open Source Software use in violation of this Section of which You become aware. For purposes of this Section, "**Open Source Software**" means any software code that is distributed as "free software" or "open source software" or that is otherwise distributed publicly in source code form under terms that permit modification and redistribution of such software.

b. Third Party Software. The TrackIR SDK includes and uses the third-party software components listed at https://trackir.com/eula. You acknowledge and agree that such third-party software is subject to and governed by the license terms under which such third party software components are licensed and You agree to strictly comply with such license terms. Any breach of such license terms by You shall be deemed a breach of this EULA.

16. **Public Reference & TrackIR Compatibility.** You consent to the public use of Your personal and/or corporate name as a customer of NaturalPoint, unless You notify NaturalPoint in writing that You withhold such consent. As a condition of the license granted in Section 2, You also consent to the publication of statements that any publicly released Products and related software designed by You are compatible with TrackIR, together with Your personal and/or corporate name, the name of any game related to the Products, and Your logo.

17. **General Terms**.

a. Records. You agree to keep complete and accurate records with respect to Your use of the TrackIR SDK sufficient to determine Your compliance with the terms and conditions of this EULA. NaturalPoint shall have the right to audit and inspect such records upon reasonable prior notice to You, and You agree reasonably cooperate with NaturalPoint in connection with any such audit and inspection.

b. Severability. If any provision of this EULA is held to be illegal, invalid, or otherwise unenforceable, such provision will be enforced to the extent possible consistent with the stated intention of the parties, or, if incapable of such enforcement, will be deemed to be severed and deleted from this EULA, while the remainder of this EULA will continue in full force and effect.

c. No Assignment. You will not transfer, assign, or delegate the TrackIR SDK or any of Your rights or obligations under this EULA, by operation of law or otherwise, without the prior written consent of NaturalPoint, which shall not be unreasonably refused, withheld, conditioned or delayed. Any transfer, assignment, or delegation of any of Your rights or obligations under this EULA in violation of this Section is void and of no effect.

d. Entire Agreement; General. This EULA constitutes the entire agreement between You and NaturalPoint and supersedes all prior or contemporaneous agreements or representations, written or oral, concerning the subject matter of this EULA. This does not, and shall not be construed to, create any partnership, joint venture, employer-employee, agency, or franchisor-franchisee relationship between You and NaturalPoint. Any heading, caption, or section title contained herein is inserted only as a matter of convenience, and in no way defines or explains any section or provision hereof. The waiver by either party of any default or breach of this EULA may only be made in writing and will not constitute a waiver of any other or subsequent default or breach.

e. Changes to this Agreement. This EULA may be unilaterally modified, changed or amended by NaturalPoint and the parties agree that any such modifications, changes or amendments ("**Amendments**") shall be binding on the parties to the extent the Amendments: (i) are generally beneficial to the parties; or (ii) do not materially conflict with the subject and purpose of the transactions governed by this EULA, in addition to being reasonable in the light of the necessity and reasonableness of the matters changed by the Amendments. NaturalPoint will make the Amendments available and accessible to You in the same manner in which NaturalPoint makes available the EULA, such Amendments to be made available and accessible in advance of the effective date of such Amendments.